



File No.: EXP202406070

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by A.A.A. (hereinafter, the appellant) against the resolution issued by the Presidency of the Spanish Agency for Data Protection dated January 8, 2025, and based on the following

FACTS

FIRST: On January 8, 2025, a resolution was issued by the Presidency of the Spanish Agency for Data Protection in file EXP202406070, by virtue of which A.A.A. (hereinafter the appellant) was imposed the ARCHIVING of the present proceedings, in response to their complaint dated April 9, 2024, against B.B.B., because it had not been proven that the digital peephole installed by the defendant captured images and, therefore, that a processing of personal data was carried out.

The appellant stated in their complaint dated April 9, 2024, that: "(...) they are a neighbor of the defendant and that they have a digital peephole with recording installed on the door of their home, capturing communal areas without authorization from the Community of Owners, since at the meeting dated February 5, 2024, it was established that the installation of digital peepholes was not authorized for any neighbor and that those who had one installed must proceed with its uninstallation.

Along with the complaint, the following were submitted:

Minutes of the community of owners of ***ADDRESS.1, among which is the one corresponding to February 5, 2024, with the aforementioned agreement not to authorize electronic peepholes with recording of images of common areas of the building and an order for the removal of existing ones as of the date of the minutes.

A video that claims to have been recorded by the digital peephole, which, according to the indication, was submitted by the defendant in a judicial proceeding in which they are involved."

The resolution of archiving subject to recourse, which was notified to the appellant on January 8, 2025, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (LOPDGDD), and subsidiarily in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: The appellant submitted on January 10, 2025, to this Spanish Agency for Data Protection, a recourse for reconsideration, grounding it on the following:

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"FIRST. In the resolution of the AEPD, it is indicated that the defendant submitted the instruction manual of an electronic peephole brand AYR model 756. We do not know if they submitted the purchase invoice for said device, something we believe would be necessary to affirm that it is the one installed on the door of their home. The date of the recorded events is, as appears in the upper left corner of the first video submitted, December 14, 2023, so said invoice should be of an earlier date. We believe that submitting an instruction manual that can be easily downloaded from the internet (from Amazon, for example) does not prove that it is the installed device.

SECOND. It is also indicated in the resolution of the AEPD that, according to the instruction manual submitted by the defendant, said device "does not record images, it only allows viewing the image for 10 seconds once the power button of the digital viewer is pressed." If this were true, we do not understand how it is possible that the video submitted by the defendant to the judicial procedure they are engaged in with A.A.A., which has been submitted to this procedure, can last 3'13". Furthermore, as can be observed in said video, at the beginning of the recording, it is clearly seen that no one

presses the doorbell of the defendant's home, but rather it begins with the father of the complainant opening the home of A.A.A. with his keys.

THIRD. We submit another video, recorded with a camera that B.B.B. has installed inside their home and that points directly at the door of A.A.A., submitted, in turn, by them to the procedure they maintain in ***COURT.1. In it, the device that initiates the file we are dealing with can be seen.

If we analyze both images, which capture the same events, we can observe how it is impossible for the framing of the first video submitted to correspond to a recording made with a mobile phone. By comparing both videos, it can be verified how the first video corresponds to a recording made from the digital peephole that the defendant has installed on their door.

Additionally, according to the instruction manual of said model of electronic peephole, its operation is as follows:

“Operation:

1. Power button: press and release the button. You will be able to see the image for 10 seconds.
2. Light indicator: if the light indicator turns on, replace the batteries.”

This means that, to be able to view the image captured by the device, it is necessary to press the power button. As can be observed in the now submitted video from the camera that the defendant has installed, aimed at recording the complainant's door when they open it, at no time is any button pressed, and the image captured in the first video submitted is continuous and begins before the door is opened, so it cannot be captured by a mobile phone.

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Therefore, we believe it has been demonstrated that, first, the first video was recorded by a digital peephole with recording capability, and second, consequently, the model that the claimant claims to have installed on their door is not the one indicated.

****LEGAL GROUNDS****

I

****Jurisdiction****

The Presidency of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

****Response to the allegations presented****

In relation to the statements made by the appellant, the following should be noted.

The appellant questions whether the electronic peephole indicated by B.B.B., an AYR brand electronic peephole model 756, is the device with which the recordings subject to complaint were made, since the recording is dated December 14, 2023, and therefore the owner of the device should provide an invoice dated prior to that date, which is not included among the documentation in this file.

The instruction manual for this device states that “it does not record images, it only allows viewing the image for 10 seconds once the power button of the digital viewer is pressed.”

Furthermore, the video submitted by B.B.B. in the judicial procedure against the appellant lasts more than three minutes, despite the fact that the AYR brand electronic peephole model 756 can only display the image for ten seconds.

Additionally, the appellant submits, along with their appeal, another video presented by B.B.B. in the procedure they maintain against the appellant in ***COURT.1, where the door of the appellant is recorded, and whose focus is the same as that of the first video submitted.

Thus, by comparing both videos, it can be verified that both videos were made with the same device,

that is, from the digital peephole that the respondent has installed on their door.

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Such facts allow the AEPD to reconsider its decision upon confirming that B.B.B. may have used a digital peephole from their door, different from the model indicated by them, but rather with a model of digital peephole capable of recording images of the common areas of the building where they live, without the consent of the homeowners' association, which would imply a possible illegality in the processing of personal data.

III

****Conclusion****

In this case, along with the appeal for reconsideration, new relevant documentation has been submitted regarding the matters raised, which allows for the consideration that B.B.B. may have used a digital peephole that records images of the common areas, which would imply the processing of personal data.

In view of the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO GRANT the appeal for reconsideration filed by A.A.A. against the resolution of this Spanish Agency for Data Protection issued on January 8, 2025, in file EXP202406070.

SECOND: TO NOTIFY this resolution to A.A.A. and in accordance with Article 77.2 of the GDPR, TO INFORM B.B.B. about the outcome of the complaint.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be suspended provisionally if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

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